

GREENROOT v WEBSTER

25CV48032

DEFENDANTS WEBSTER'S MOTION TO COMPEL RESPONSE TO RFPD SET TWO

This case involves a contract dispute concerning real property brought by Lorna Greenroot ("Plaintiff") against Pennelope Webster ("Pennelope")⁴, Randy Webster ("Randy") (collectively "Websters") and Gregory Stanley ("Stanley.") Now before the Court is a motion to compel further responses to Request for Production of Documents, Set Two (RPD Set Two) brought by Pennelope against Plaintiff.

I. Relevant Procedural Background

On May 20, 2025, Pennelope served an initial set of discovery on Plaintiff which became the subject of a previous set of motions to compel. (See Aug 29, 2025, Ruling.) As part of the Court's Ruling, Plaintiff was ordered to provide initial responses to Special Interrogatories, Set One ("SROG Set One") and Requests for Production of Documents, Set one ("RPD Set One.") At issue in that matter were sixty-two (62) RPDs to which Plaintiff had not responded. Plaintiff was ordered to provide the discovery responses on or before September 19, 2025.

Two days after the first sets of discovery were sent to Plaintiff, Pennelope served RPD, Set Two on Plaintiff. (Declaration of Michael Fluetsch ("Fluetsch Decl.") ¶ 3, Ex. A.) Plaintiff responded on June 23, 2025. Plaintiff's responses to RPD, Set Two, were comprised primarily of boiler plate objections, were not verified, and did not result in the production of any documents. On June 27, 2025, Pennelope's counsel attempted to call Plaintiff but was unable to reach her. Thereafter, counsel sent Plaintiff a "meet and confer" letter. (Fluetsch Decl. ¶ 7, Ex. C.)

⁴ Given the common surnames, the Court may refer to some parties by their first names. No disrespect is intended.

II. Legal Standard

On receipt of a response to a Request for Production of Documents, the demanding party may move for an order compelling further responses to the demand if the demanding party deems that (1) a statement of compliance with the demand is incomplete, (2) a representation of inability to comply is inadequate, incomplete, or evasive, or (3) an objection in the response is without merit or too general. (CCP § 2031.310(a).)

Motions to compel further responses to RPDs must set forth specific facts showing good cause justifying the discovery sought by the request. (CCP § 2031.310(b).) To establish good cause, a discovery proponent must identify a disputed fact that is of consequence in the action and explain how the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact. (*Digital Music News LLC v. Superior Court* (2014) 226 Cal.App.4th 216, 224, disapproved on other grounds by *Williams v. Superior Court* (2017) 3 Cal.5th 531; see also *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98 [characterizing good cause as “a fact-specific showing of relevance”].) If good cause is shown by the moving party, the burden shifts to the responding party to justify any objections made to disclosure of the documents. (*Kirkland, supra*, 95 Cal.App.4th at 98.)

III. Discussion

To each RPD, Plaintiff replied in a substantially similar manner, stating:

Responding party objects to this request on the grounds that it is vague, ambiguous, overbroad, unduly burdensome, duplicative, and not reasonably calculated to lead to the discovery of admissible evidence. This request seeks testimony that is equally available to the propounding party through court records. Responding party also objects on the basis of privacy and undue harassment.

Responding party is not in possession of the requested documents. Any records that exist are believed to be a matter of public record and may be obtained directly from the court. Responding party reserves the right to supplement this response should responsive documents come into her possession.

Boilerplate objections, such as those made by Plaintiff, fail to satisfy the level of specificity required by the discovery statutes. (*Korea Data Systems Co. v. Super. Court* (1997) 51 Cal.App.4th 1513, 1516.) Indeed, it can be a misuse of the discovery process to provide, without substantial justification, an unmeritorious objection to discovery or to make an evasive response to discovery. (Code Civ. Proc. § 2023.010(e), (f).) Here, Plaintiff's responses were not code-compliant because they did not state with "particularity any document, tangible thing, land or electronically stored information falling within the category of item in the demand to which objection is being made." (Code Civ. Proc. § 2031.240(b)(1).) Nor does Plaintiff state the particular privilege she intends to invoke nor does she provide "sufficient factual information for other parties to evaluate the merits of that claim, including, if necessary, a privilege log." (*Id.* § subd. (c)(1).)

Based on the foregoing, the Motion to Compel Further Responses to RFPD Set Two is **GRANTED**. Plaintiff is ordered to provide code-compliant responses to RPD, Set Two, on or before October 3, 2025. Although the responses were not verified, Plaintiff is not required to provide objection-free responses pursuant to Code Civ. Proc. §2031.250 [verification is not required where the responses only contain objections].)

The Court has discretion to impose sanctions. (Code Civ. Proc. § 2023.030(a).) The Court has previously been reluctant to award mandatory sanctions pursuant to Code Civ. Proc. section 2023.050(e) given Plaintiff's pro se status. However, this is now the second motion to compel discovery that Penelope has had to bring due to Plaintiff's misuse of the discovery process. The Court has also previously warned Plaintiff to comply with all meet and confer requirements and to avoid involving the Court in unnecessary motion practice. (July 11, 2025 Ruling; Aug. 29, 2025 Ruling.) Accordingly the Court believes sanctions are appropriate in this case.

Counsel for Penelope seeks sanctions in the amount of \$2,535.00. (Fluetsch Decl. ¶ 9.) Mr. Fleutsch avers that he has a billing rate of \$550 and incurred four hours drafting the motions. As no opposition was filed, he did not incur his anticipated further charges. The Court finds that \$550 is outside the reasonable rate charged in this jurisdiction and lowers the rate to \$300.00. The Court also finds that the instant motion was substantially similar to the previous motion and therefore reduces time spent to two (2) hours.

Accordingly, the Court **AWARDS SANCTIONS** in the amount of \$600 and court filing fees in the amount of \$60.00, resulting in total sanctions of **\$660, to be paid by October 3, 2025.**

The clerk shall provide notice of this ruling to the parties forthwith. Pennelope to prepare a formal Order in compliance with Rule of Court 3.1312 in conformity with this Ruling.

HIX, et al v FCA US LLC, et al

25CV48078

**DEFENDANT'S DEMURRER AND MOTION TO STRIKE
PUNITIVE DAMAGES CLAIM**

This case involves a breach of warranty/lemon law dispute. Now before the Court are a demurrer and a motion to strike FCA US, LLC.

The Motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to deny the motion.